NARI SHAKTI ACT

ON

the evening of April 17, a division bell rang through the new Lok Sabha, the same vaulted, peacock-themed chamber in which, 31 months earlier, amidst a thunderous ovation, the Narendra Modi government had passed the Nari Shakti Vandan Adhiniyam that reserved 33 per cent of seats in the Lok Sabha and state assemblies for women. This time, though, the mood was hostile. When the Speaker announced the count—298 ayes, 230 nays—the Constitution (One Hundred and Thirty-first Amendment) Bill had fallen short of the requisite two-thirds majority by more than 60 votes. It was the first time a Modi-era constitutional amendment had been defeated in a floor test, and the reverberations echoed well beyond the chamber.

So, why did the Modi government go out on a limb knowing the odds were stacked against it? The ruling party appears to have wanted to strike several birds with one stone. One of them was to fast-track the Nari Shakti Vandan Adhiniyam, 2023, as left to its normal course, the law would kick in no earlier than 2034. That is because the 2023 Act specifies that women's reservation will take effect only after a delimitation exercise was carried out on the basis of the first Census conducted after the Act was passed. The new amendment bill sought to compress that timeline by delinking implementation from any future Census. A separate bill was introduced to push through delimitation of constituencies, ostensibly to chalk out an expansion of the Lok Sabha to create extra room to accommodate a one-third quota painlessly.

The wager, observers concluded, was perceived as a win-win for the ruling BJP. It was betting that the Opposition would find it politically awkward to reject a bill tied to women's reservation. With women constituting nearly half the Indian electorate, a victory would give the BJP the edge needed for a fourth consecutive term in 2029. BJP sources say that Union home minister Amit Shah from February onwards had sought support from each of the key Opposition leaders to push through the bill and informed them that the government was sensitive about ensuring that southern states would not be impacted. The party believed that many of the Opposition parties were amenable and therefore it moved the amendment bill.

But, in Parliament, Opposition parties changed tack and opposed the amendment, charging the government with using women's reservation as a façade to hoodwink the nation. The real aim, the Congress claimed, was to complete delimitation before 2029, allowing the ruling party to redraw constituencies to its electoral advantage and avoid factoring

UNFAIR DIVI

JAMMU & KASHMIR
5 | 8 | 9 (-1)

HARYANA
10 | 15 | 18 (-3)

DELHI
7 | 11 | 12 (-1)

RAJASTHAN
25 | 38 | 48 (-10)

UTTAR PRADESH
80 | 120 | 140 (-20)

BIHAR
40 | 60 | 73 (-13)

JHARKHAND
14 | 21 | 23 (-2)

MADHYA PRADESH
29 | 43 | 51 (-8)

GUJARAT
26 | 39 | 42 (-3)

CHHATTISGARH
11 | 17 | 18 (-1)

MAHARASHTRA
48 | 72 | 79 (-7)



50 PER CENT increase in seats across states would maintain the current North-South ratio, but delimitation based on the 2011 Census would widen the gap